

Satpal Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 February 2020 · Writ - C No. 2218 of 2020 · **Writ dismissed; relegated to Section 127 appeal.**

HEADNOTE

A writ against a final electricity-theft assessment and recovery certificate is not entertained where an efficacious appeal lies under Section 127 of the Electricity Act, 2003. The Division Bench dismissed the petition without examining the petitioner's claim that his objection was filed beyond the Supply Code period.

FACTUAL SUMMARY

Satpal Singh approached the Allahabad High Court after a recovery certificate followed a final assessment on an allegation of electricity theft. A provisional assessment had been made in 2018. He claimed he filed an objection in 2019, much beyond the period prescribed under the Electricity Supply Code. By the date of hearing a final assessment had been completed and a recovery certificate issued. Counsel for the petitioner and the Electricity Department were heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

section 127 appeal bars writ against final assessment

HOLDING

Where a final assessment on an allegation of electricity theft has been made and a recovery certificate issued, the High Court will not entertain a writ petition because an efficacious appeal lies under Section 127 of the Electricity Act, 2003.

¶ 3-5

PRINCIPLE TAGS

alternate-remedy-section-127-appeal-bars-writ The Division Bench refused writ interference because an efficacious Section 127 appeal lay against the final assessment. ¶ 3-4

final-assessment-order-relegates-assessee-to-section-127-appeal Once a final assessment and recovery certificate had issued, the petitioner was left to the statutory appeal under Section 127. ¶ 2-5

relegation-to-section-127-appeal-on-merits-limitation-not-examined The Court noted the claim that the 2019 objection was filed beyond the Supply Code period but did not decide limitation or the merits of the theft assessment. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 2019 OBJECTION WAS BEYOND THE SUPPLY CODE PERIOD, AND THE MERITS OF THE THEFT ASSESSMENT AND RECOVERY CERTIFICATE

Left to the Section 127 appeal. ¶ 2-4